

FORD v GREENHORN GOLF, LLC.

23CV47102

PLAINTIFF'S MOTION FOR PRELIMINARY INJUNCTION

Plaintiff's motion for preliminary injunction is on calendar for July 26, 2024. Defendant has requested a continuance of thirty days to obtain and analyze the relevant Parcel Map to determine if Plaintiff's claims in the Reply are correct. The court finds there is good cause for Defendant's request and grants the same. Accordingly, **the matter is continued to August 30, 2024, at 9:00 am in Department 2.**

PG&E v DKM, LLC

24CV47310

PLAINTIFF'S MOTION FOR PRE-JUDGMENT POSSESSION OF PROPERTY

This is an action in eminent domain where Pacific Gas and Electric ("PG&E") seeks to take certain property ("Property") located at 4150 Carson Street, in an unincorporated area of Calaveras County, near Vallecito, California, also known as Calaveras County Assessor's Parcel No. 066-025-04. DKM, LLC ("DKM") is the fee simple interest holder of the Property. Calaveras County Water District ("District") and Northern California Power Agency ("NCPA") both hold easements on the Property.

PG&E seeks this property for the purpose of replacing and upgrading a tower and transmission conductor as part of a larger scope of work that involves replacing approximately 410 existing electrical transmission structures with new steel structures (referred to as the Project). The Complaint states that the "new tower and conductor replacement necessitates a wider span of easement to accommodate sway in the electrical lines to ensure that PG&E's operations fall within its existing easements." (Complaint ¶ 6.)

PG&E seeks the following interests (the Easement Interests) in portions of the Property:

- a. Plaintiff seeks to modify its existing electric transmission easement rights in the Owner's real property described in EXHIBIT C, which modified easement rights are described as STRIP on EXHIBIT and depicted on EXHIBIT "A-1" and EXHIBIT "B", attached hereto and incorporated herein as though set forth in full by this reference.
- b. PG&E seeks to modify PG&E'S existing electric distribution pole line easement rights in the Owner's real property described in EXHIBIT C, which modified distribution easement rights are described in EXHIBIT "A" and shown on EXHIBIT "A-2, attached hereto and incorporated herein as though set forth in full by this reference, as STRIP ONE, STRIP TWO, STRIP THREE, STRIP FOUR, STRIP FIVE, AND STRIP SIX.
- c. The right to excavate for, construct, reconstruct, replace, remove, maintain, inspect, use facilities and associated equipment for public utility purposes, including but not limited to electric and communication facilities over and across the lands described in EXHIBIT "C" and shown on